

Smt. Shilpa @ Ashwini vs Sri. Manjappa S on 27 November, 2023

Author: S.G.Pandit

Bench: S.G.Pandit

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NC: 2023:KHC:42664

CP No. 208 of 2023

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 27TH DAY OF NOVEMBER, 2023
BEFORE

THE HON'BLE MR JUSTICE S.G.PANDIT
CIVIL PETITION NO. 208 OF 2023

BETWEEN:

SMT. SHILPA @ ASHWINI
W/O MANJAPPA.S
AGE 25 YEARS,
RES OF KALLAGANGURU VILLAGE,
POST. ABBALGERE
TQ. SHIVAMOGGA
DIST. SHIVAMOGGA

...PETITIONER

(BY SMT. JAYASHREE KRISHNAMURTHY., ADVOCATE)

AND:

SRI. MANJAPPA. S
S/O SHIVAPPA KEMPELLAR
AGE 38 YEARS,
RES OF INAM-MUTTALLI VILLAGE,
TQ. SHIKARIPUR
DIST. SHIVAMOGGA - 577 427.

...RESPONDENT

Digitally signed
by A K
CHANDRIKA
Location: HIGH
COURT OF
KARNATAKA

(RESPONDENT IS SERVED)

THIS PETITION IS FILED UNDER SECTION 24 OF CPC,
PRAYING THAT THE HON'BLE COURT MAY BE PLEASED TO
TRANSFER THE CASE M.C.NO.11/2023 PENDING ON THE FILE
OF SENIOR CIVIL JUDGE AND JMFC, SHIKARIPUR TO FAMILY
COURT SHIVAMOGGA TO PROCEED IN ACCORDANCE WITH
LAW IN THE INTEREST OF JUCSTICE.

THIS PETITION, COMING ON FOR ADMISSION, THIS DAY,
THE COURT MADE THE FOLLOWING:

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NC: 2023:KHC:42664
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ORDER

Petitioner, wife of respondent is before this Court under Section 24 of CPC with a prayer to transfer M.C.No.11/2023 pending on the file of the Senior Civil Judge and JMFC., Shikaripura to the Family Court at Shivamogga for disposal.

2. Heard the learned counsel Smt.Jayashri Krishnamurthy for petitioner/wife. Though the respondent is served with Court notice, he has remained absent. Perused the civil petition papers.

3. learned counsel for the petitioner/wife would submit that marriage of the petitioner and respondent was solemnized on 30.06.2018 and from the marriage, they have one child aged about 3 years. Petitioner/wife is not working and she has no income of her own. Petitioner/wife has filed Crl.Misc.No.56/2023 on the file of the JMFC-III, Shivamogga under Section 12 of the Protection of Women from Domestic Violence Act, 2005 (for short, 'DV Act'). Respondent/husband has initiated M.C.No.11/2023 on the NC: 2023:KHC:42664 file of the Senior Civil Judge and JMFC., Shikaripura under the Section 13(1)(ia) and (ib) of the Hindu Marriage Act, 1955 (for short, '1955 Act') seeking dissolution of marriage. It is submitted that petitioner/wife would not be in a position to travel from Shivamogga to Shikaripura along with her 3 years child and also that she has no income of her own. Therefore, it is prayed for transfer of proceedings in M.C.No.11/2023 from Shikaripura to Shivamogga.

4. In a petition filed under Section 24 of CPC for transfer of proceedings, more particularly, in matrimonial cases, the Court shall have to take note of the inconvenience or hardship that would be caused to the wife along with social and financial status of the parties (N.C.V. Aishwarya v. A.S. Saravana Karthik Shai).

5. Taking note of the fact that petitioner/wife has no income of her own and along with three years child, it 2022 SCC OnLine SC 1199 NC: 2023:KHC:42664 would be difficult for petitioner/wife to travel from Shivamogga to Shikaripura to attend the MC proceedings instituted by respondent/husband. If the prayer of petitioner/plaintiff is refused, petitioner/wife would suffer more inconvenience and hardship. Hence, the following:

ORDER

1) Civil Petition filed under Section 24 of CPC is allowed.

2) The proceedings in M.C.No.11/2023 pending on the file of the Senior Civil Judge and JMFC., Shikaripura is directed to be transferred to the Family Court at Shivamogga for further consideration in accordance with law.

Sd/-

JUDGE NC